Portland City Auditor
Hearings Office
1900 SW 4th Avenue, Room 3100, Portland, OR 97201
www.portlandoregon.gov/auditor/hearings
phone: (503) 823-7307
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LU 25-016753 CU AD Hearings Office 4250007

RECORDER
Please stamp the County Recorder's copy of the recording sheet and return with the attached decision to City of Portland, BDS 299/4500/BDS LUR

Please bill City of Portland, Account #1113

Multnomah County Official Records
E. Murray, Deputy Clerk

2025-050432
08/08/2025 02:18:35 PM
LUA-LUA Pgs=8 Stn=91 ATCB
$40.00 $11.00 $60.00 $20.00
$131.00

Kimberly Tallant, Principal Planner

City of Portland
Portland Permitting & Development
1900 SW Fourth Ave, #4500
Portland, OR 97201

Date: 7/17/2025

Kimberly Tallant
Representative

Last date to Appeal:	**7/31/2025**	**by 4:30 pm**
Effective Date (if no appeal):	**8/1/2025**	Decision may be recorded on this date

***THIS RECORDED DOCUMENT ONLY INCLUDES EXCERPTS FROM THE DECISION.**

***A FULL COPY OF THE DECISION IS LOCATED ON THE PP&D WEBSITE AT:**

https://www.portland.gov/ppd/zoning-land-use/news/notices

Portland City Auditor
Hearings Office

HearingsOfficeClerks@PortlandOregon.gov

503-823-7307

DECISION OF THE HEARINGS OFFICER

I. GENERAL INFORMATION

File Number: LU 25-016753 CU AD (Hearings Office 4250007)

Applicant:
Debbie Cleek
The Bookin Group
1020 SW Taylor Street, Suite 555
Portland, OR 97205
cleek@bookingroup.com

Owners' Representative:
Virginia Laforte
Grant Bowl Community Coalition
4032 NE 32nd Avenue
Portland, OR 97212
grantbowlcoalition@gmail.com

Property Owners:
Portland City Of
1120 SW 5th Avenue #858
Portland, OR 97204-1912

School District No. 1
PO Box 3107
Portland, OR 97208-3107

Hearings Officer: Marisha Childs

Portland Permitting & Development (PP&D) Staff Representative: Andrew Gulizia

Site Address: 2245 NE 36th Avenue

Legal Description: TL 2200 10.20 ACRES, SECTION 25 1N 1E; TL 2300 19.90 ACRES, SECTION 25 1N 1E

Tax Account Number: R941250360, R941250370

State ID Number: 1N1E25DB 02200, 1N1E25DB 02300

Quarter Section: 2734 & 2834

Neighborhood: Grant Park

Business District: Hollywood Boosters

District Coalition: District 2

Plan District: None

Zoning: OS (Open Space) and R5 (Single-Dwelling Residential 5,000)

Land Use Review: Type III, CU AD – Conditional Use Review and Adjustment Review

PP&D Staff Recommendation to Hearings Officer: Approval with conditions.

Public Hearing: The hearing opened at 9:01 a.m. on Wednesday, June 11, 2025, via the Zoom platform and closed at 11:15 a.m. After receiving two requests, the record was held open after the hearing. The record was held open until 4:30 p.m. on June 18, 2025, for new evidence from anyone; until 4:30 p.m. on June 25, 2025, for rebuttal to new evidence; and until 4:30 p.m. on July 2, 2025, for the Applicant's final argument. The record closed at 4:30 p.m. on July 2, 2025.

Testified at the Hearing:
Andy Gulizia
Tyler Mann
Debbie Cleek
Virginia La Forte
Gretchen Cole
Neon Brooks, for Grant Park Neighborhood Association
Shannon Normington
Kate Ratanaproeksa
James McGee, Grant High School Principal
Stephanie Antipov
Bob Simril
George Crawford
John Beck
Dave Unsworth
Jacob Wicks

Proposal: The Applicant proposes to add new lighting to the existing Grant Bowl athletic field in the OS-zoned (Grant Park) portion of this site. Three new poles with light fixtures are proposed around this field. New light fixtures are also proposed on an existing pole between this field and the adjacent Upper Field. Since the new lights will serve a field that will be used for organized sports (as defined in Zoning Code Chapter 33.910), approval of a Type III Conditional Use Review is required (Zoning Code Section 33.279.035.B.2).

The Applicant also requests Adjustment Review approval to increase the maximum structure height for the new light poles from 50 feet to 80 feet (Zoning Code Section 33.100.200.B.1 and Zoning Code Table 110-9).

Relevant Approval Criteria: To be approved, this proposal must comply with the approval criteria of Title 33, The Portland Zoning Code. The applicable approval criteria are:

- Zoning Code Section 33.815.100.A-D (Conditional Use Review)
- Zoning Code Section 33.805.040.A-F (Adjustment Review)

The Portland Zoning Code is available online at https://www.portland.gov/code/33.

II. ANALYSIS

Prior to the record closing public comments raised issues with the tone and tenor of interactions between neighbors at Grant Park Neighborhood Association meetings. The Hearings Officer, having participated in neighborhood association meetings and having served on boards, declines to wade into those turbid waters. What is evident from the public comment received is there is strong community support for Grant High School and for adding lights to the field. The purpose of this decision however, is to analyze whether the Applicant's proposal meets the applicable approval criteria. When engaging in that analysis, the number of public comments received do not move the scale up or down if they fail to address the applicable approval criteria. Much of the public comment received did not address the approval criteria, rather highlight personal feelings.

Based upon substantial evidence in the record, the Hearings Officer agrees with the findings and analysis of PP&D and adopts and incorporates those findings from the Memo dated June 6, 2025 (Exhibit 30 - which modifies Exhibit 9 Staff Report and Recommendations) in this decision.

Proposal: The applicant proposes to add new lighting to the existing Grant Bowl athletic field in the OS-zoned (Grant Park) portion of this site. Three new poles with light fixtures are proposed around this field. New light fixtures are also proposed on an existing pole between this field and the adjacent Upper Field. Since the new lights will serve a field that will be used for organized sports (as defined in Zoning Code Chapter 33.910), approval of a Type III Conditional Use Review is required (Zoning Code Section 33.279.035.B.2). The applicant also requests Adjustment Review approval to increase the maximum structure height for the new light poles from 50 feet to 80 feet (Zoning Code Section 33.100.200.B.1 and Zoning Code Table 110-9).

To be approved, this proposal must comply with the approval criteria of Title 33, of the Portland Zoning Code. Specifically, Code 33.815.100 A-D, and 33.805.040 A-F.

1. Conditional Use Criteria – Code 33.815.100 Uses in Open Space Zone

   Character and impacts

- The proposed use is consistent with the intended character of the specific OS zoned area and with the purpose of the OS zone;

III. CONCLUSIONS

The Hearings Officer finds that all applicable approval criteria have been met.

IV. DECISION

Approval of the following:

- Conditional Use Review to add new lighting to the existing Grant Bowl athletic field; and
- Adjustment Review to increase the maximum structure height for the new light poles from 50 feet to 80 feet (Zoning Code Section 33.100.200.B.1 and Zoning Code Table 110-9).

The approval is subject to the following conditions:

A. As part of the building permit application submittal, each of the required site plans and any additional drawings must reflect the information and design approved by this land use review as indicated in Exhibits C-1 and C-2. The sheets on which this information appears must be labeled, "Proposal and design as approved in Case File # LU 25-016753 CU AD."

B. The existing trees around the Grant Bowl field shown in Exhibit C-1 and subject to the tree protection plan in Exhibit A-14 must be preserved unless determined by a certified arborist to be dead, dying, or hazardous. If any of these trees are removed for one of these allowable reasons in the future, it must be replaced with a new tree meeting the minimum planting requirements in Zoning Code Section 33.248.030.C.1 in the same general area of the site.

C. School sporting events in the Grant Bowl field must end no later than 9:30 p.m., with field lights around the Grant Bowl field turned off no later than 10:00 p.m.

D. Non-school-related use of the Grant Bowl field through Portland Parks & Recreation must end no later than 9:00 p.m., with field lights around the Grant Bowl field turned off no later than 9:30 p.m.

E. Within and adjacent to the Grant Bowl field, signs advertising a business may not face outward toward the street. Signs which face inward toward the field are not subject to this requirement.

F. Portland Public Schools (PPS) custodial staff (or other responsible parties) must remove litter from the Grant Bowl field area after every scheduled PPS game.

G. With PPS's cooperation as to location, Portland Parks and Recreation must place and regularly service at least two additional trash/recycling receptacles at the Grant Bowl field.

H. No amplified sound source may be used on or adjacent to the Grant Bowl field after 7:00 p.m., except for school games and events as limited by Condition H and I, below. This

condition of approval does not authorize the use of any permanent, non-portable voice amplification system for the Grant Bowl field, which is not allowed unless approved through a separate Conditional Use Review (Zoning Code Section 33.279.035.A.1)

I. Voice amplification equipment such as a public address (PA) system may be used only by Portland Public Schools for school-related games and events at the Grant Bowl field. Field users who reserve the field through Portland Parks and Recreation may not use voice amplification equipment.

J. Voice amplification equipment used for Grant Bowl field events must not be used after 9:30 pm and the volume must continuously comply with the limitations in the Portland Noise Control Code (Title 18).

K. Portland Public Schools (PPS) must arrange and hold a meeting with the Grant Park Neighborhood Association board to discuss the safety of the transportation system in the area. Within 30 days of the effective date of this decision, PPS staff must email general@grantpark-na.org and gp.landuse@gmail.com to arrange this meeting. PPS staff must make themselves available for a meeting at a mutually agreed upon time and place (or online, if accepted by both parties) that takes place within 90 days of the effective date of this decision.

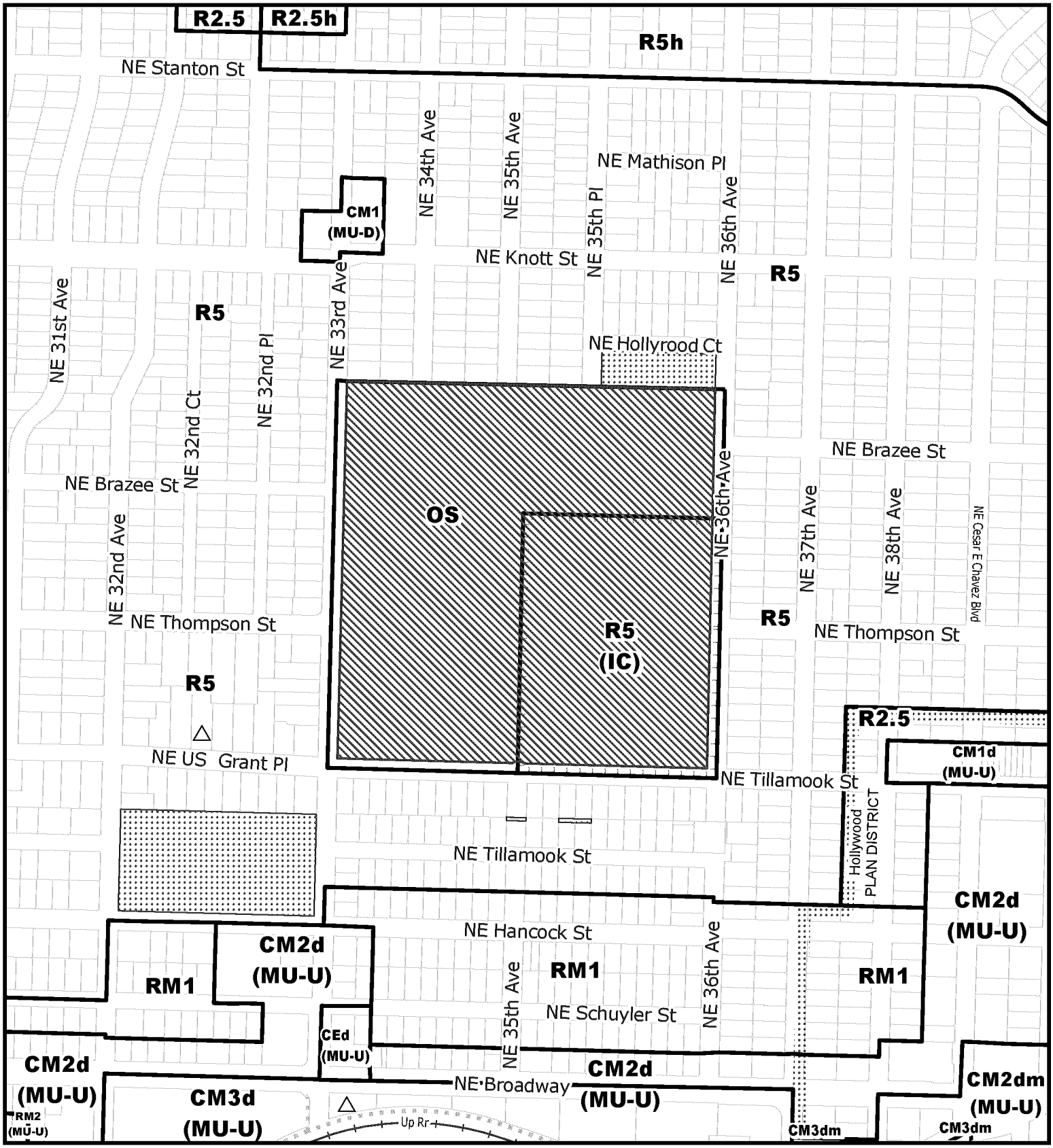
L. PPS shall create a policy to inform all visiting schools that team bus parking shall occur along NE 36th Avenue and on-site in the school parking lot, when feasible, and that team bus parking on NE US Grant Place is discouraged.

Marisha Childs
Marisha Childs, Hearings Officer

July 17, 2025
Date

Application Determined Complete:	April 25, 2025
Report to Hearings Officer:	May 29, 2025
Decision Mailed:	July 17, 2025
Last Date to Appeal:	4:30 p.m. on July 31, 2025
Effective Date (if no appeal):	August 1, 2025

Conditions of Approval. This project may be subject to a number of specific conditions, listed above. Compliance with the applicable conditions of approval must be documented in all related permit applications. Plans and drawings submitted during the permitting process must illustrate how applicable conditions of approval are met. Any project elements that are specifically required by conditions of approval must be shown on the plans and labeled as such.



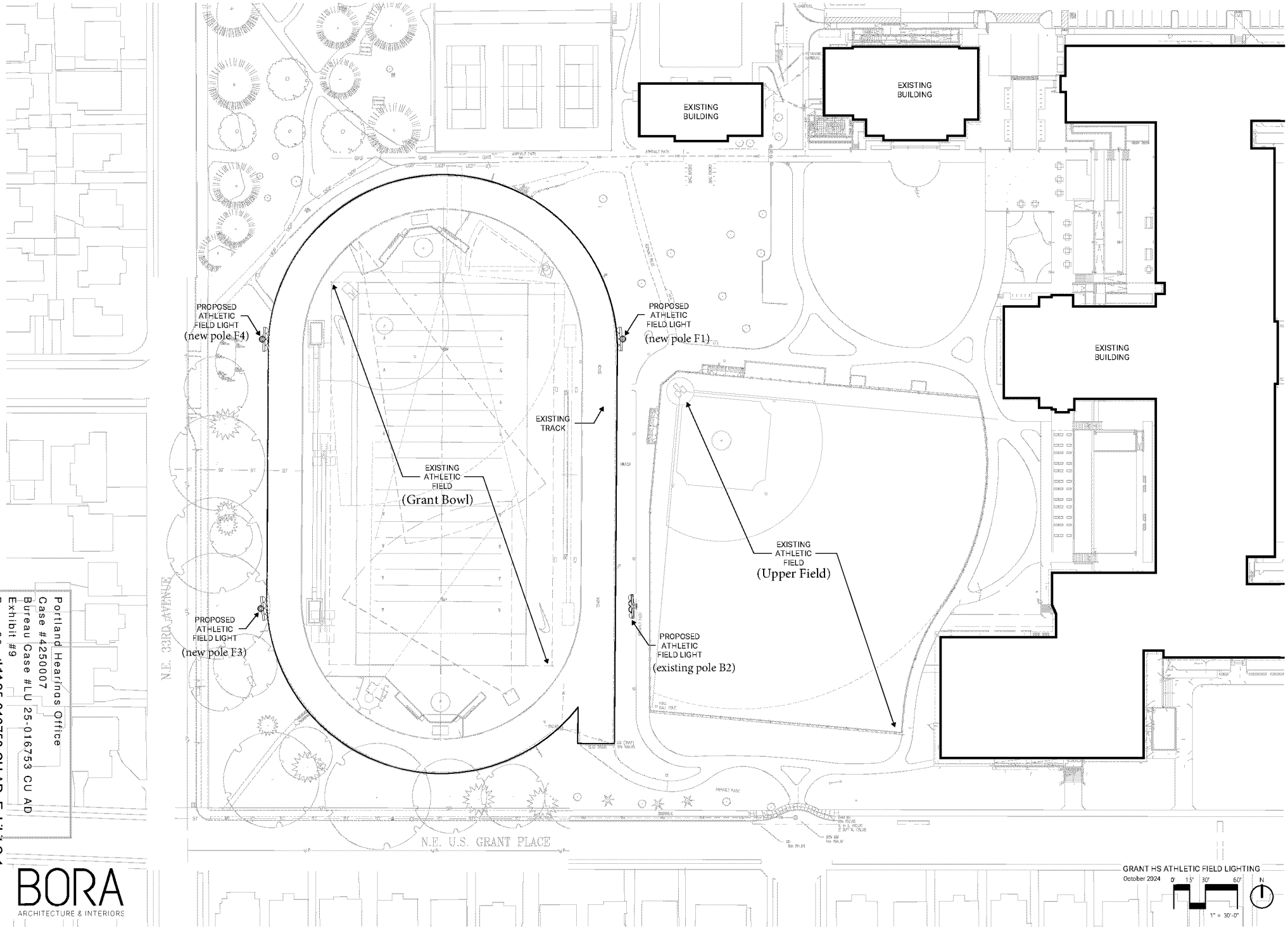
For Zoning Code in Effect Post October 1, 2024

ZONING

- Site
- Also Owned Parcels
- Plan District
- Historic Landmark
- Recreational Trails

File No. LU 25 - 016753 CU AD
1/4 Section 2734,2834
Scale 1 inch =400 feet
State ID 1N1E25DB 2200
Exhibit B Mar 04, 2025

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BORA
ARCHITECTURE & INTERIORS

GRANT HS ATHLETIC FIELD LIGHTING
October 2024
0' 15' 30' 60'
1" = 30'-0"
N